

NDA Templates — Counsel Brief

⚠ **NOT LEGAL ADVICE.** An inventor-prepared brief requesting two confidentiality templates counsel should produce, and describing how they are used across the packet. Prepared 2026-09-14. See [LAWYER-MASTER-TODO §0](#) and Part B, and the provisional patent's trade-secret note (§13).

Why this matters

Trade-secret-sensitive material (the provisional patent specifics, the AI-model design, the optimization engine, pricing internals) loses protection once disclosed without confidentiality in place. Any conversation with a law firm you have not yet retained, a prospective developer, an advertiser doing deep diligence, or a potential partner should sit behind an NDA first.

Templates counsel should produce

- **Mutual NDA** — for two-way discussions (prospective counsel before engagement, potential partners, co-marketing counterparties). Covers definition of confidential information, permitted use, exclusions, term/survival for trade secrets, return/destruction, and no-license language.
- **One-way (inbound-protective) NDA** — for parties receiving the company's confidential material (contractors, beta testers, vendors, service providers), with an IP-assignment/feedback clause where the counterparty may create work product.

Decisions for counsel

Trade-secret survival period (often perpetual for true trade secrets vs. a fixed term for other confidential info); governing law/venue (align with the rest of the contract stack); whether the one-way NDA should fold into the Partner/Developer Agreement or stand alone; carve-outs for residual knowledge.

Where used

Front-of-packet counsel engagement (share patent material only after a mutual NDA); contractor/developer onboarding; any diligence by advertisers or partners.

Not legal advice. Related: [CORPORATE-FORMATION-AND-GOVERNANCE-BRIEF](#), [Agreements\PARTNER-AFFILIATE-DEVELOPER-AGREEMENT](#), [COUNSEL-ENGAGEMENT-START-HERE §6](#), [Provisional Patent §13](#).